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File No: EXP202104745

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by Ms. A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated October 28, 2022, and based on the following

FACTS

FIRST: On October 28, 2022, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202104745, by virtue of which a fine of €10,000 (ten thousand euros) was imposed on Ms. A.A.A. for a violation of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR.

This resolution, which was notified to the appellant on November 14, 2022, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, the following was recorded:

FIRST: On November 12, 2012, a letter from the affected party was received at the AEPD in which she stated that an advertisement had been published in the forum (...) with which "my image has been defamed (...) (...). Furthermore, they have provided the exact address of where I am residing on vacation in ***LOCALIDAD.1".

SECOND: The complainant has provided a screenshot of an advertisement titled "(...)", with the comment "(...), advertisement of a woman and (...) (...) It is at ***DIRECCIÓN.1 (...). The advertisement is accompanied by a photograph of (...).

THIRD: On November 25, 2021, MUBA, the owner of the website where the personal data of the complainant was published, reported similar advertisements published on its platform with the same user identifier used to publish the advertisement indicated in the complaint. In the advertisements published by this user between November 5 and 8, 2021, a contact phone number is also listed.

FOURTH: Upon consulting the website of the "RIPE Network Coordination Centre," the entity responsible for coordinating IP ranges for the European area, the assignment of the IPs provided by MUBA corresponds to ORANGE for the IP of the contested advertisement.

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FIFTH: ORANGE, the entity assigned the IP address from which the contested advertisement was published, informed in a letter dated December 17, 2021, that the ownership of the same at the time the advertisement was published corresponds to the respondent.

THIRD: The appellant submitted a recourse for reconsideration on December 7, 2022, to this Spanish Agency for Data Protection, basing it primarily on the following: her disagreement with the resolution issued; that the sanctioning procedure must be informed by constitutional principles such as that of evidence, and its omission causes defenselessness; that the email address of the person who published the advertisement is unknown to her, and no actions have been taken to identify it.

LEGAL GROUNDS

I

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic

Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Regarding the statements made by the appellant, the following should be noted:

- First, the contested resolution was issued after the deadline indicated in the initiation agreement of the sanctioning procedure for submitting allegations; it expressly indicated her right to be heard in the procedure and granted her a period of ten working days to submit allegations and propose any evidence she deemed appropriate.

It was also indicated that, if no allegations were made against this initiation agreement, it could be considered a proposal for resolution, in accordance with the provisions of Article 64.2.f) of the LPACAP, and based on this, a resolution was issued sanctioning her for violation of the principle of legality enshrined in Article 6.1 of the GDPR, classified under Article 83.5 a) of the same regulation.

- Second, it is alleged that the procedure lacks the constitutional principles that guarantee it, such as the requirement to conduct evidence that supports the accusation made, and its omission would lead to a situation of defenselessness.

However, such a statement cannot be accepted; it should be recalled that the National Court in numerous rulings, including that of June 8, 2005, states that: "To analyze the issue raised, it is appropriate to recall that in sanctioning matters, the Constitutional Court has established as one of the basic pillars for the interpretation of Administrative Sanctioning Law that the principles and basic guarantees present in the field of criminal law are...

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applicable, with certain nuances, in the exercise of any sanctioning power of the Public Administration (STC 76/1990, of April 26, STS of January 23, 1998 (Rec de casación 1650/1995, etc.).

Furthermore, the STC 18/1981 (second legal foundation in fine) had already pointed out that "the essential principles reflected in Article 24 of the Constitution, in matters of procedure, must be applicable to the sanctioning activity of the Administration, to the extent necessary to preserve the essential values that underlie the precept and the legal certainty guaranteed by Article 9 of the Constitution, because the guarantee of constitutional order requires that the agreement be adopted through a procedure in which the alleged accused has the opportunity to provide and propose evidence and to argue what is appropriate to their rights."

Also, within the European framework, it is established that the imposition of sanctions, including administrative fines, must be subject to sufficient procedural guarantees in accordance with the general principles of Union Law and the Charter, including the right to effective judicial protection and to a process with all guarantees.

However, the appellant, notified of the initiation agreement, has had the opportunity to examine the file by requesting the documents that comprise it and the actions carried out prior to the opening of the procedure, to know the documents that comprise it and the facts that motivate its initiation, to make allegations that they consider pertinent to their defense and to propose evidence, etc.

On the other hand, in addition to the minimum content of the Initiation Agreement, it includes the designation of the Instructor/a, and, where appropriate, secretary/a, with indication of the recusal regime of the same, the competent body to resolve, indication of the allegedly committed infringement and possible sanction that may correspond.

Therefore, the appellant's allegation is unsustainable since the procedure has been carried out with all guarantees.

- Furthermore, in the pre-procedural phase, the inspection services of this management center carried out actions related to the claimed facts, resulting in three individuals being investigated, with the identifier assigned to the claimant being the investigated 1.

MUBA, the company owning the website where the image and other personal data of the claimant were published, provided the IP address from which it was made and which was subsequently

determined, through consultation at the “RIPE Network Coordination Centre” site, the entity responsible for coordinating IP ranges for the European area, who the operator assigned it to; however, in certain cases where authorship is determined and defined solely through the IP address, it may raise doubts about the evidence of the same, not identifying its responsible party in a reliable manner, but rather the line holder, who may or may not coincide with the author.

It is true that devices that do not need to have constant access to the network, which do not require a fixed identity on the network, are usually given a dynamic IP; however, in the present case, it is also true that the operator has informed that the ownership of this IP at the time the advertisement was published belonged to the respondent; but MUBA also referred not only to the data of the requested advertisement but also to other identical or similar ones with the same email, understanding that this account needed to be verified.

On the other hand, the email address ***EMAIL.1 inserted in the advertisement cannot be decisive since, with the information available, this data does not guarantee or identify the author as it would be necessary to intervene the router of the IP in question and obtain the activity of its traffic, something that cannot be done without judicial authorization.

In view of the cited precepts and others of general application,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ESTIMATE the appeal for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection issued on October 28, 2022, in file EXP202104745, indicating to the sanctioned party that the obligation to pay the fine imposed in the contested resolution is rendered ineffective.

SECOND: TO NOTIFY this resolution to A.A.A. and, in accordance with Article 77.2 of the GDPR, TO INFORM the claimant about the result of the complaint.

In accordance with the provisions of Article 50 of the LOPDPGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDPGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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